

In addition, Plaintiff asserts her own additional facts concerning Detloff's communications with the Association and the landscapers. (PRSS, Plaintiff's Additional Material Facts [PAMF] Nos. 1-25.)

Plaintiff concedes that Detloff did not personally enter her property, but she claims he directed, and encouraged others to enter her property. Plaintiff argues that Detloff is liable for trespass based on an aiding and abetting theory in which he directed and encouraged the Association and Vintage Landscape on the manner and extent of cutting. (PRSS, UMF Nos. 4-7, 9; PAMF Nos. 1-24.) Plaintiff argues that if Detloff was aware that entering her property constitutes an unauthorized entry and he substantially encouraged the Association and/or its agent, Vintage Landscape to enter, Detloff can be civilly liable for the trespass. (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 879.)

A defendant is liable for aiding and abetting if the person (1) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (2) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person. (*Casey v. U.S. Bank National Association* (2005) 127 Cal.App.4th 1138, 1144.)

The problem here is that Plaintiff has not asserted any facts to establish that Detloff *knew* the Association's or Vintage Landscape's conduct constituted a trespass, and that he provided substantial assistance or encouragement to enter Plaintiff's property. She has not asserted any facts to establish that Detloff gave substantial assistance to the Association or Vintage Landscape in accomplishing a tortious result and Detloff's own conduct separately considered, constituted a breach of duty to a third person. Without such facts, Plaintiff cannot establish Detloff's actual knowledge that the Association's or Vintage Landscape's wrongful conduct or his own conduct constituted a trespass. Notably, Detloff points out that Plaintiff inconsistently claims that the Association trespassed on her property while also acknowledging her property is subject to CC&Rs, which authorize it and its agents to enter properties to perform landscaping maintenance. Thus, Plaintiff has not met her burden. The motion is granted in favor of Detloff on this cause of action. GRANTED

3rd and 4th Causes of Action - Violation of Civil Code § 3346 and CCP § 733

These statutes provide for treble damages for wrongful injuries to trees or trespass for cutting and carrying away trees or timber. The statutes require an underlying trespass. However, as discussed above, Plaintiff has not raised a triable issue of material fact as to Detloff trespassing onto her property nor has she established his potential liability based on an aiding and abetting theory. Moreover, Plaintiff has not established the alleged injuries to her trees. Thus, Plaintiff has not met her burden. The motion is granted in favor of Detloff on these causes of action. GRANTED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504364	SIMONYAN VS MARRIOTT INTERNATIONAL, INC.	MOTION 1 TO COMPEL KRISTINA GALSTYAN'S FURTHER RESPONSES TO REQUEST FOR ADMISSION SET ONE, BY DEFENDANT MARRIO HOTEL SERVICES, LLC

Tentative Ruling: Hearing continued to Tuesday, September 29, 2026 at 8:30 a.m., Department PS2.

No further briefing will be permitted.